

In re Estate of Bussler

160 Wash. App. 449, 247 P.3d 821 (Wash. Ct. App. Div. 2, 2011)

PROCEDURAL HISTORY:

Kathleen Bussler, a disinherited daughter, petitioned to probate her mother's earlier 1997 will and to invalidate a later 2009 will, alleging lack of testamentary capacity and undue influence. Following a bench trial, the superior court upheld the 2009 will and awarded attorney fees and costs from the estate. Kathleen appealed. Karen Bussler, the sole beneficiary under the 2009 will, cross-appealed, arguing that attorney fees should have been assessed against Kathleen personally under RCW 11.24.050. The Court of Appeals affirmed.

FACTS:

Jacquelyn Bussler died on March 22, 2009, survived by four children. Under a 1997 will, Jacquelyn left her estate equally to her daughters, Karen and Kathleen, and disinherited her two sons. Jacquelyn's health declined due to chronic obstructive pulmonary disease and other conditions, and in April 2008 Karen moved into Jacquelyn's home and became her primary caregiver. In 2003, Jacquelyn executed a durable power of attorney naming Karen as her attorney-in-fact, which Karen later used for various documents, including briefly transferring Jacquelyn's home into Karen's name before transferring it back. On March 14, 2009, eight days before her death, Jacquelyn executed a new will prepared by a different law office that left her entire estate to Karen. The attorney's legal assistant reviewed the will with Jacquelyn alone for approximately one hour, and two neighbors witnessed the execution. Medical and hospice records around that time indicated that Jacquelyn was generally alert and oriented to person and place, though she had some cognitive impairment noted earlier and evidence of estrangement from Kathleen.

ISSUE:

Whether Jacquelyn Bussler lacked testamentary capacity when she executed the March 14, 2009 will, or whether the will was procured through undue influence by Karen Bussler, such that the will is invalid?

HOLDING:

No. Kathleen Bussler failed to prove, by clear, cogent, and convincing evidence, that Jacquelyn Bussler lacked testamentary capacity at the time she executed the March 14, 2009 will or that the will was the product of undue influence by Karen Bussler.

RULE:

Testamentary capacity exists when, at the time of execution, the testator has sufficient mind and memory to understand that they are making a will, to comprehend generally the nature and extent of their property, and to recollect the natural objects of their bounty. A will that is properly

executed and rational on its face is presumed valid, and the party challenging the will bears the burden of proving lack of capacity by clear, cogent, and convincing evidence. Undue influence requires proof that another person interfered with the testator's free will such that the testamentary disposition reflects the influencer's intent rather than the testator's own, and it must likewise be proven by clear, cogent, and convincing evidence.

REASONING:

The court relied on testimony from the legal assistant who reviewed the will with Jacquelyn for approximately one hour and believed that Jacquelyn was alert, understood the documents, and signed voluntarily. The neighbor-witnesses testified that Jacquelyn knew why they were present and understood she was signing her will, despite being physically ill. Medical and hospice records close in time to the execution showed that Jacquelyn was alert and oriented, and physical illness or medication use alone did not establish lack of testamentary capacity. The court rejected Kathleen's argument that Karen's use of the durable power of attorney demonstrated mental incompetence, finding instead that it was used due to Jacquelyn's physical limitations. With respect to undue influence, although Karen had the opportunity to exert influence due to her role as caregiver and sole beneficiary, opportunity alone was insufficient. There was no evidence that Karen isolated Jacquelyn from others or controlled her decision-making, and the trial court's credibility determinations were entitled to deference on appeal.